

No. 26-\_\_\_\_\_

**IN THE UNITED STATES COURT OF APPEALS  
FOR THE FIFTH CIRCUIT**

**IN RE CORY J. BENNETT,**  
Petitioner.

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On Emergency Petition for a Writ of Mandamus to the  
United States District Court for the Western District of Texas,  
Austin Division, No. 1:26-cv-01601-RP-DH  
The Honorable Robert L. Pitman, United States District Judge  
The Honorable Dustin M. Howell, United States Magistrate Judge

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**EMERGENCY PETITION FOR WRIT OF MANDAMUS**

Cory J. Bennett

Petitioner Pro Se

6705 W Highway 290

Ste 607 PMB #268

Austin, TX 78735-8407

Telephone: (512) 630-5607

Email: csquaredbennett@gmail.com

*Petitioner requests expedited consideration under Fifth Circuit Rule 27.3.*

## **Certificate of Interested Persons**

The undersigned petitioner certifies that the following listed persons and entities as described in the fourth sentence of Fifth Circuit Rule 28.2.1 have an interest in the outcome of this case. These representations are made to enable the judges of this Court to evaluate potential recusal or disqualification.

### **Petitioner**

Cory J. Bennett, Plaintiff pro se in *Bennett v. The University of Texas at Austin et al.*, No. 1:26-cv-01601-RP-DH (W.D. Tex.)

### **Respondents / named defendants in the district-court action**

The University of Texas at Austin

Emily Hsiao

James G. Scott

Sally K. Ragsdale

Jay Bartroff

Kelli Bradley

Jeff Graves

### **Trial-court judges**

Hon. Robert L. Pitman, United States District Judge

Hon. Dustin M. Howell, United States Magistrate Judge

### **Counsel**

No defendant has appeared. No opposing counsel is of record. Petitioner is unrepresented.

No publicly traded corporation is a party, and no publicly traded corporation has a financial interest in the outcome.

s/ Cory J. Bennett

Cory J. Bennett, Petitioner Pro Se

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**EMERGENCY PETITION FOR WRIT OF MANDAMUS**

**Introduction**

Petitioner Cory J. Bennett respectfully petitions for a writ of mandamus directing the United States District Court for the Western District of Texas to decide his pending application to proceed in forma pauperis, complete screening review under 28 U.S.C. § 1915(e)(2), and determine whether process may issue. Threshold § 1915 review remains unresolved, no summons has issued, and no defendant has been served. As a consequence, Petitioner cannot access the court-directed service mechanism authorized by § 1915(d) and Federal Rule of Civil Procedure 4(c)(3). Meanwhile, continued judicial inaction consumes the narrow window remaining to provide notice and obtain a ruling before Fall 2026 academic deadlines expire.

The requested writ leaves all substantive determinations—including IFP eligibility, complaint screening, and any prospective injunctive relief—entirely to the district court.

Petitioner initiated the underlying civil-rights action on June 12, 2026, filing the Complaint, an IFP application, and proposed summonses. The clerk docketed the IFP application as Dkt. 3 on June 23, 2026. The district court has not ruled on that application, completed § 1915(e)(2) screening, or authorized process. No Defendant has appeared or received formal process.

On June 29, 2026, Petitioner moved for a preliminary injunction regarding Fall 2026 accommodation procedures and course enrollment. The district court denied that motion on July 2, citing a lack of notice to Defendants. On July 7, the court denied reconsideration, stating that Petitioner may refile the preliminary-injunction motion once notice is given to opposing parties and may then propose a briefing schedule.

Following that instruction, Petitioner pursued the threshold rulings required to secure court-issued process and formal service. Those motions were referred to the magistrate judge under general docket-management procedures. The magistrate judge has entered no order, report, or recommendation on Dkts. 3, 10, 11, or 12. On August 14, 2026, Petitioner filed Dkt. 13 asking the district judge to modify the referrals and expedite disposition. The electronic filing system automatically routed that motion back to the same magistrate judge. The clerk's Help Desk confirmed that all motions auto-refer to the magistrate judge, leaving the referral modification unaddressed by the district judge.

Under UT Austin’s published calendar, registration for readmitted students begins August 20, classes start August 24, late registration ends August 31, and permission-based adds close September 9. Without an IFP determination or § 1915 screening, court-directed service under § 1915(d) remains unavailable, consuming the remaining period required for Rule 65 notice, renewed briefing, and administrative implementation.

Although delay-based mandamus often involves prolonged inaction spanning multiple years, the Fifth Circuit evaluates the significance of judicial delay in context, measuring the passage of time against the operational window of the requested remedy (*In re Fort Worth Chamber of Commerce*, 100 F.4th 528, 534–35 (5th Cir. 2024)). Under Federal Rule of Civil Procedure 65(a)(1), notice to the adverse party is legally sufficient without perfected service of process (*Whirlpool Corp. v. Shenzhen Sanlida Elec. Tech. Co.*, 80 F.4th 536, 542–43 (5th Cir. 2023)). Nevertheless, withholding threshold IFP screening stalls the statutory service mechanism guaranteed to indigent litigants, foreclosing practical access to the preliminary-injunction procedure the district court prescribed.

### **Relief Sought**

Petitioner requests a writ directing the district court to:

1. Adjudicate Petitioner’s application to proceed in forma pauperis (Dkt. 3);
  2. Complete screening review under 28 U.S.C. § 1915(e)(2);
  3. Resolve Dkts. 10 through 13 to determine issuance of process and service;
- and



4. Enter any resulting case-management orders necessary for the action to proceed.

Petitioner seeks solely to compel the district court to make these threshold determinations, leaving the substantive outcome of each matter to the trial court's discretion.

Since UT Austin's Fall 2026 registration and add periods are underway or imminent, Petitioner also requests expedited consideration under Fifth Circuit Rule 27.3. A companion emergency motion accompanies this petition.

### **Issue Presented**

Whether mandamus is warranted when threshold IFP and § 1915(e)(2) screening remain unresolved; the district court conditioned renewal of a preliminary-injunction motion on notice to adverse parties; Petitioner repeatedly requested disposition of threshold service motions without receiving a ruling; the motion asking the district judge to modify the referral was automatically rerouted to the magistrate judge; and continued inaction threatens to extinguish the operational window for Fall 2026 academic relief.

### **Jurisdiction and Authority**

This Court possesses jurisdiction under the All Writs Act, 28 U.S.C. § 1651(a), and Federal Rule of Appellate Procedure 21. Mandamus lies to confine an inferior court to the lawful exercise of its jurisdiction or to compel the performance of a clear judicial duty (*Roche v. Evaporated Milk Ass'n*, 319 U.S. 21, 26 (1943); *Will*

*v. Calvert Fire Ins. Co.*, 437 U.S. 655, 661–62 (1978); *In re United States ex rel. Drummond*, 886 F.3d 448, 450 (5th Cir. 2018)).

Mandamus relief requires establishing that (1) no other adequate means exist to obtain relief; (2) the right to the writ is clear and indisputable; and (3) issuance of the writ is appropriate under the circumstances (*Cheney v. U.S. Dist. Court*, 542 U.S. 367, 380–81 (2004); *In re Volkswagen of Am., Inc.*, 545 F.3d 304, 311 (5th Cir. 2008) (en banc)).

Fifth Circuit Rule 21 requires a certificate of interested persons and copies of the supporting district-court papers attached to the petition. No opposing memoranda exist, no Defendant has appeared, and the district court has issued no written opinion or order explaining the delay.

## **Statement of Facts**

### **I. The Civil Action and Unresolved IFP Application**

Petitioner initiated this action on June 12, 2026, asserting claims under Title II of the Americans with Disabilities Act, Section 504 of the Rehabilitation Act, and 42 U.S.C. § 1983 against The University of Texas at Austin and six university officials. The initiating filing included an application to proceed in forma pauperis and proposed summonses. The clerk docketed the IFP application as Dkt. 3 on June 23, 2026. On June 26, the court entered an order restricting remote public access to the unredacted financial affidavit but did not rule on the application or complete § 1915(e)(2) screening. Dkt. 3 remains pending, no summons has issued, and no defendant has been served or appeared.

## **II. Preliminary-Injunction Proceedings and the July 7 Notice Condition**

Petitioner executed a motion for preliminary injunction on June 29, 2026 (docketed as Dkt. 8 on July 1), seeking to assign Fall 2026 accommodation and enrollment decisions to uninvolved university officials. Dkt. 8 requested a briefing schedule following service or another recognized form of notice under Rule 65(a)(1). On July 2, the district court denied the motion for lack of notice. On July 7, the court denied reconsideration, entering a text order stating:

“Plaintiff acknowledges that notice is required before the Court can grant a preliminary injunction under Rule 65(a)(1), but asks the Court to (1) withhold ruling on his Motion for Preliminary Injunction, (Dkt. 8), until he effectuates notice on Defendants and (2) set a briefing schedule tied to the date Plaintiff gives that notice. The Court declines to grant Plaintiff’s request and cannot set deadlines in the manner Plaintiff requests. Plaintiff may refile his Motion for Preliminary Injunction at a later date once notice is given to opposing parties. In that Motion, Plaintiff may request a briefing schedule for the Court’s consideration.”

Under Federal Rule of Civil Procedure 65(a)(1), notice to the adverse party is legally sufficient without perfected Rule 4 service (*Whirlpool*, 80 F.4th at 542–43). However, the district court’s July 7 order tied preliminary-injunction proceedings directly to adverse notice while withholding the IFP screening required to unlock court-directed process under 28 U.S.C. § 1915(d). This deadlock leaves threshold

service stalled while the operational window for effective Fall 2026 relief closes.

### **III. Successive Requests for Process Rulings**

Petitioner methodically pursued the rulings required to effect service:

- **Dkt. 10 (filed July 6):** Requested summons issuance or identification of remaining prerequisites. Referred to Magistrate Judge Howell on July 7 pursuant to the division's general docket-management order.
- **Dkt. 11 (filed July 21):** Requested emergency expedition of Dkts. 3 and 10. Referred by District Judge Pitman to Magistrate Judge Howell for disposition on July 22.
- **Dkt. 12 (filed August 6):** Requested prompt IFP disposition, § 1915(e)(2) screening, and service orders within five business days (by August 13) or a date certain. Automatically referred to Magistrate Judge Howell.

The five-business-day request in Dkt. 12 expired on August 13 without action. The magistrate judge has entered no order, report, or recommendation on any referred motion.

### **IV. The August 14 Request to the District Judge**

On August 14, 2026, Petitioner filed Dkt. 13, formally asking District Judge Pitman to modify the referrals, withdraw the pending motions, and dispose of Dkts. 3 and 10–12 by August 18. Dkt. 13 explained that Rule 72 objections remain unavailable because no report or order has been entered, invoking the district judge's authority under 28 U.S.C. § 636(b).

Upon filing, CM/ECF automatically routed Dkt. 13 back to Magistrate Judge Howell. The ECF Help Desk confirmed that all filings auto-refer to the magistrate judge, who must manually forward motions to the district judge. Dkt. 13 has generated no ruling, timetable, or referral modification.

## **V. The Remaining Fall 2026 Window**

UT Austin's published academic schedule establishes four critical dates: readmission registration on August 20, the start of classes on August 24, the close of late registration on August 31, and the final deadline for permission-based adds on September 9. Every additional day of inaction compresses the time available for summons issuance, notice, response briefing, judicial decision, and university administrative execution.

### **Reasons the Writ Should Issue**

Mandamus is a drastic remedy reserved for extraordinary circumstances (*Allied Chem. Corp. v. Daiflon, Inc.*, 449 U.S. 33, 34–35 (1980)). The writ issues when the petitioner has no other adequate means to attain relief, the right to the writ is clear and indisputable, and the court determines that issuance is appropriate under the circumstances (*Cheney*, 542 U.S. at 380–81; *In re Volkswagen of Am., Inc.*, 545 F.3d 304, 311 (5th Cir. 2008) (en banc)).

## **I. Petitioner Has No Other Adequate Means to Obtain Relief**

No appealable order or magistrate recommendation exists from which Petitioner can seek review under 28 U.S.C. § 1291 or Federal Rule of Civil Procedure 72.

Petitioner exhausted all district-court mechanisms by filing Dkt. 10 (summons motion), Dkt. 11 (expedition motion), Dkt. 12 (screening timetable request), and Dkt. 13 (motion to modify referral). Because an automated CM/ECF referral prevents Dkt. 13 from reaching the district judge, ordinary trial-court channels are deadlocked. An appeal following final judgment cannot remediate an academic semester that has already passed.

## **II. Petitioner Has a Clear and Indisputable Right to the Exercise of Jurisdiction**

Mandamus is appropriate when a trial court fails to adjudicate matters properly presented to it (*Will v. Calvert Fire Ins. Co.*, 437 U.S. 655, 661–62 (1978); *In re United States ex rel. Drummond*, 886 F.3d 448, 449–50 (5th Cir. 2018)). Petitioner seeks solely to compel the performance of mandatory statutory duties:

First, 28 U.S.C. § 1915(a) requires evaluating financial eligibility based on economic criteria (*Gibbs v. Jackson*, 92 F.4th 566, 569 (5th Cir. 2024)), while § 1915(e)(2) mandates threshold screening. The district court has executed neither obligation.

Second, once IFP status is granted and a claim survives screening, 28 U.S.C. § 1915(d) and Federal Rule of Civil Procedure 4(c)(3) direct court officers to issue process and effect service. Withholding screening deprives an indigent litigant of this statutory mechanism.

Third, magistrate judges support but cannot supplant Article III judges (*Lawson v. Stephens*, 900 F.3d 715, 716 (5th Cir. 2018)). The district judge retains ultimate authority over referred matters and possesses the continuous duty to man-

age referrals under 28 U.S.C. § 636(b). Continued multi-week silence in the face of imminent external deadlines constitutes a failure to exercise prescribed jurisdiction.

### **III. Inaction Is Extinguishing the Underlying Remedy**

The Fifth Circuit has established that judicial delay must be evaluated against the operational timeline of the requested relief (*In re Fort Worth Chamber of Commerce*, 100 F.4th 528, 534–35 (5th Cir. 2024)). When repeated, date-specific requests identify an impending external cutoff, procedural delay that consumes the remaining window is functionally equivalent to an operative denial.

Petitioner alerted the court to UT Austin’s Fall 2026 deadlines in Dkts. 8, 11, 12, and 13, requesting specific disposition dates to preserve adequate time for briefing and service. Inaction has reduced the operational window from 56 days when Dkt. 8 was executed to just one day before readmission registration begins on August 20 and five days before classes commence on August 24. Mandamus is necessary to compel the prompt completion of threshold IFP review so that the preliminary-injunction procedure authorized on July 7 remains practically viable.

### **Conclusion**

Petitioner respectfully requests that this Court issue a writ of mandamus directing the district court to promptly rule on Petitioner’s IFP application (Dkt. 3), complete screening under 28 U.S.C. § 1915(e)(2), resolve Dkts. 10 through 13 as necessary to determine issuance of process, and enter any resulting orders. Given the impending academic deadlines, Petitioner requests expedited consideration under Fifth Circuit Rule 27.3.

Respectfully submitted,  
Dated: August 19, 2026  
s/ Cory J. Bennett  
Cory J. Bennett, Petitioner Pro Se  
Mailing Address: 6705 W Highway 290  
Ste 607 PMB #268  
City/State/ZIP: Austin, TX 78735-8407  
Telephone: (512) 630-5607  
Fax: None  
Email: csquaredbennett@gmail.com



### **Certificate Regarding Rule 21 Service**

I certify that on August 19, 2026, I filed this Emergency Petition for Writ of Mandamus, including the attached district-court papers required by Federal Rule of Appellate Procedure 21 and Fifth Circuit Rule 21, together with the accompanying Emergency Motion for Expedited Consideration, with the Clerk of the United States Court of Appeals for the Fifth Circuit.

Because no Defendant has been served with process or entered an appearance in the district-court action, and no opposing counsel is of record, service cannot be effected on adverse parties below. Pursuant to Federal Rule of Appellate Procedure 21(a)(1), copies of this petition and all accompanying filings have been served directly on the trial-court judges.

s/ Cory J. Bennett

Cory J. Bennett, Petitioner Pro Se

### **Certificate of Compliance**

This petition complies with the type-volume limitation of Federal Rule of Appellate Procedure 21(d) because, excluding the parts of the document exempted by Rule 32(f) and Fifth Circuit Rule 21, it contains 2,427 words. A computer-produced petition may not exceed 7,800 words.

This petition complies with the typeface requirements of Federal Rule of Appellate Procedure 32(a)(5) and the type-style requirements of Rule 32(a)(6), as made applicable by Rule 32(c)(2), because it has been prepared in a proportionally spaced typeface using L<sup>A</sup>T<sub>E</sub>X in 14-point Times.

s/ Cory J. Bennett

Cory J. Bennett, Petitioner Pro Se

## **Declaration of Cory J. Bennett**

I, Cory J. Bennett, declare as follows:

1. I am the Petitioner. I am the Plaintiff in *Bennett v. The University of Texas at Austin et al.*, No. 1:26-cv-01601-RP-DH (W.D. Tex.). I have personal knowledge of the facts stated in this declaration.
2. I filed the Complaint, an application to proceed in forma pauperis, and proposed summonses on June 12, 2026. As of the date of this declaration, the district court has not decided the IFP application, has not completed review under 28 U.S.C. § 1915(e)(2), and has not issued process. No Defendant has been served. No Defendant has appeared.
3. I filed Dkt. 13 on August 14, 2026, at 10:04 a.m. The notice of electronic filing states that the motion seeks consideration by District Judge Robert L. Pitman and modification of the referrals of Dkt. 3 and Dkts. 10–12, and that the motion was referred to Judge Dustin M. Howell. As of the date of this declaration, the district court has entered no order on Dkt. 13 and has identified no remaining task required of me.
4. I have reviewed UT Austin’s published Fall 2026 registration and academic calendar. Registration for readmitted students is August 20, 2026. Classes begin August 24, 2026. Undergraduate late registration continues through August 31, 2026. Additional permission-based registration continues through September 9, 2026.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed on August 19, 2026, in Austin, Texas.

s/ Cory J. Bennett

# **Required Record Materials**

Fed. R. App. P. 21(a)(2)(C); 5th Cir. R. 21

These papers are attached to the petition.

1. Official notices of electronic filing for Dkt. 3 and the July 7 text order, with a short chronology
2. Dkt. 10 — Motion for issuance of summonses
3. Dkt. 11 — Emergency motion to expedite disposition of Dkts. 3 and 10
4. Dkt. 12 — Supplemental motion for prompt IFP and § 1915 review
5. Dkt. 13 — Emergency motion to modify referral, with proposed order
6. November 24, 2025 Court Docket Management Order for the Austin Division

# **Attachment 1**

Official docket entries for Dkt. 3 and the July 7 text order

## **Docket Chronology**

| <b>Date</b>     | <b>Event</b>                                                                                                                                                |
|-----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|
| June 12, 2026   | Petitioner submits the Complaint, IFP application, and proposed summonses.                                                                                  |
| June 23, 2026   | Clerk enters the IFP application as Dkt. 3.                                                                                                                 |
| July 1, 2026    | Clerk enters the preliminary-injunction motion as Dkt. 8.                                                                                                   |
| July 2, 2026    | Text order denies Dkt. 8 for lack of notice to Defendants.                                                                                                  |
| July 6, 2026    | Clerk enters Dkt. 9 (reconsideration) and Dkt. 10 (summonses).                                                                                              |
| July 7, 2026    | Text order denies Dkt. 9 and states that Petitioner may refile the preliminary-injunction motion once notice is given. Dkt. 10 is referred to Judge Howell. |
| July 21, 2026   | Clerk enters Dkt. 11.                                                                                                                                       |
| July 22, 2026   | Judge Pitman refers Dkt. 11 to Judge Howell for disposition.                                                                                                |
| August 6, 2026  | Petitioner files Dkt. 12. Notice of electronic filing: “Motions referred to Judge Dustin M. Howell.”                                                        |
| August 13, 2026 | Five-business-day period requested in Dkt. 12 expires. No ruling issues.                                                                                    |
| August 14, 2026 | Petitioner files Dkt. 13 at 10:04 a.m. The docket text seeks consideration by Judge Pitman and states: “Motions referred to Judge Dustin M. Howell.”        |

### **Dkt. 3 — application to proceed in forma pauperis**

The clerk entered Petitioner’s application to proceed in forma pauperis as Dkt. 3 on June 23, 2026. The public RSS capture attached below, made the same day, lists the “Proceed In Forma Pauperis” entry for Document 3. The district court later restricted remote access to the unredacted financial affidavit. It has not granted or denied Dkt. 3. No summons has issued.

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      <pubDate>Tue, 23 Jun 2026 16:38:02 GMT</pubDate>
    </item>
    ...
    <item>
      <title>1:26-cv-01601 Bennett v. The University of Texas at Austin et al</title>
      <link>https://ecf.txwd.uscourts.gov/cgi-bin/DktRpt.pl?1172916436</link>
      <description>[Case Assigned/Reassigned] </description>
      <guid isPermaLink="true">https://ecf.txwd.uscourts.gov/cgi-bin/DktRpt.pl?1172916436&12</guid>
      <pubDate>Tue, 23 Jun 2026 16:36:21 GMT</pubDate>
    </item>
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    <item>
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      <link>https://ecf.txwd.uscourts.gov/cgi-bin/DktRpt.pl?1172916436</link>
      <description>[Complaint] (<a href="https://ecf.txwd.uscourts.gov/doc1/181036817064?caseid=1172916436&de_seq_num=10" >1</a>)</description>
      <guid isPermaLink="true">https://ecf.txwd.uscourts.gov/cgi-bin/DktRpt.pl?1172916436&10</guid>
      <pubDate>Tue, 23 Jun 2026 16:34:56 GMT</pubDate>
    </item>
    ...
  </channel>
</rss>
```

**July 7, 2026 text order — official notice of electronic filing**

The following transaction was entered on July 7, 2026, at 3:58 p.m. CDT, in No. 1:26-cv-01601-RP-DH. No document is attached. The official docket text states:

Text Order DENYING [9] Motion for Reconsideration entered by Judge Robert Pitman. Plaintiff acknowledges that notice is required before the Court can grant a preliminary injunction under Rule 65(a)(1), but asks the Court to (1) withhold ruling on his Motion for Preliminary Injunction, (Dkt. 8), until he effectuates notice on Defendants and (2) set a briefing schedule tied to the date Plaintiff gives that notice. The Court declines to grant Plaintiff's request and cannot set deadlines in the manner Plaintiff requests. Plaintiff may refile his Motion for Preliminary Injunction at a later date once notice is given to opposing parties. In that Motion, Plaintiff may request a briefing schedule for the Court's consideration. (This is a text-only entry generated by the court. There is no document associated with this entry.) (cslc)

**August 14, 2026 docket text for Dkt. 13**

The notice of electronic filing for Dkt. 13 states, in substance:

MOTION to Expedite *Consideration by District Judge Robert L. Pitman*, MOTION *for District Judge Robert L. Pitman to Modify Referral and for Prompt Disposition of Dkt. 3 and Dkts. 10-12* ... Motions referred to Judge Dustin M. Howell. (Bennett, Cory)

The transaction was entered on August 14, 2026, at 10:04 a.m. CDT.



# **Attachment 2**

Dkt. 10

**UNITED STATES DISTRICT COURT  
WESTERN DISTRICT OF TEXAS  
AUSTIN DIVISION**

**CORY J. BENNETT**, Plaintiff,

**Civil Action No. 1:26-cv-01601-RP-DH**

**v.**

**THE UNIVERSITY OF TEXAS AT  
AUSTIN; EMILY HSIAO; JAMES G.  
SCOTT; SALLY K. RAGSDALE; JAY  
BARTROFF; KELLI BRADLEY; and  
JEFF GRAVES**, Defendants.

**PLAINTIFF'S MOTION FOR ORDER DIRECTING ISSUANCE OF  
SUMMONSES AND PRO SE ELECTRONIC-FILING INSTRUCTIONS**

Plaintiff Cory J. Bennett respectfully moves for an order directing the Clerk to issue the summonses needed for service, or to identify any remaining step needed for issuance, and to provide any remaining instructions needed to complete pro se electronic-filing access in this case.

Plaintiff files this motion now because the Court's July 2, 2026 text order denying Plaintiff's Motion for Preliminary Injunction and Request for Expedited Consideration, Dkt. 8, identified lack of notice as the immediate barrier to consideration of the preliminary-injunction request. Plaintiff cannot cure that barrier without issued summonses or other instructions for completing notice, and Plaintiff cannot use the Court's electronic-filing and electronic-notice process without the remaining steps needed to activate the access the Court has approved.

**Relevant Facts**

Plaintiff filed this civil-rights action and related initiating papers on June 12, 2026. Those papers included proposed summonses and an application for permission to file electronically. Plaintiff's public complaint, proposed summonses, and electronic-filing application used Plaintiff's private-mailbox mailing address, where Plaintiff can receive court mail. The electronic-filing application is attached as Exhibit A.

On June 24, 2026, the Court granted Plaintiff's Pro Se Motion for Permission to File Electronically, Dkt. 2. The text order stated that Plaintiff would receive further instructions from the Clerk's Office. The notice of that order is attached as Exhibit B.

Plaintiff also received a June 24, 2026 notice listing "ECF Registration Instructions Letter to Cory J. Bennett," Dkt. 6. The notice of electronic filing is attached as Exhibit C. The letter filed as Document 6 is attached as Exhibit D. That letter directs Plaintiff to submit a support-desk ticket, but it does not provide the party-request or account-linking steps later identified as necessary to connect Plaintiff's PACER account to this case.

As of July 3, 2026, Plaintiff has not received, by mail or otherwise, the issued summonses or instructions needed to complete service. Plaintiff also has not received instructions sufficient to complete the party-request or account-linking process for pro se electronic filing in this case.

On June 26, 2026, Plaintiff submitted a NextGen CM/ECF registration request for the Western District of Texas. The request was rejected the same day because the system treated the request as an attorney registration and stated that Plaintiff must submit a party request so that the account can be linked in this Court. Plaintiff contacted the Western District of Texas ECF Help Desk the same day. The Help Desk directed Plaintiff to the PACER Service Center. Plaintiff emailed the PACER Service Center on June 26, 2026. As of July 3, 2026, Plaintiff has not received a response from PACER. The registration-status notice and related correspondence are attached as Exhibit E.

The delay now affects the preliminary-injunction schedule. Dkt. 8 asked the Court to set any preliminary-injunction response and hearing schedule only after Defendants received service or another form of notice accepted under Rule 65(a)(1). The July 2 text order denied Dkt. 8 because Plaintiff had not shown notice of the motion or this lawsuit. Plaintiff seeks the administrative materials and instructions needed to complete notice, file proof of notice, and allow Defendants an opportunity to respond.

### **Basis for Relief**

Federal Rule of Civil Procedure 4(b) provides that, after the complaint is filed, a plaintiff may present a summons to the Clerk for signature and seal and that, if the summons is properly completed, the Clerk must sign, seal, and issue it to the plaintiff for service. Rule 4(c)(1) makes Plaintiff responsible for service of the summons and complaint within the time allowed by Rule 4(m). Plaintiff cannot complete that responsibility without issued summonses or instructions for obtaining them.

Federal Rule of Civil Procedure 5(d)(3)(B) provides that an unrepresented person may file electronically only if allowed by court order or local rule. The Court has granted Plaintiff permission to file electronically, but the June 24 text order contemplated further instructions from the Clerk's Office. Plaintiff therefore needs the Clerk's instructions for any remaining party-request or registration step needed to activate the approved access.

The requested order would provide only the materials and instructions needed to complete notice and file proof, so that Dkt. 8 can be considered after Defendants have an opportunity to respond.

### **Requested Relief**

Plaintiff asks the Court to direct the Clerk to issue summonses for each Defendant based on the proposed summonses already submitted, or to identify any remaining step required for issuance. Plaintiff also asks the Court to direct the Clerk to provide the instructions needed to complete the electronic-filing access approved by the June 24 text order, including any party-request step the Clerk requires.

No Defendant has appeared, and there is presently no opposing counsel with whom Plaintiff can confer regarding this motion.

Respectfully submitted,

Dated: July 3, 2026

*Cory Bennett*

---

Cory J. Bennett, Plaintiff Pro Se  
Mailing Address: 6705 W Highway 290  
Ste 607 PMB #268  
City/State/ZIP: Austin, TX 78735-8407  
Telephone: (512) 630-5607  
Fax: None  
Email: csquaredbennett@gmail.com

**EXHIBITS TO PLAINTIFF'S MOTION FOR SUMMONS ISSUANCE  
AND PRO SE ELECTRONIC-FILING INSTRUCTIONS**

The following exhibits are submitted in support of Plaintiff's motion.

| <b>Exhibit</b> | <b>Description</b>                                                  | <b>Pages</b> |
|----------------|---------------------------------------------------------------------|--------------|
| Exhibit A      | Document 2, application for permission to file electronically       | 6            |
| Exhibit B      | June 24, 2026 text order granting permission to file electronically | 7            |
| Exhibit C      | June 24, 2026 notice listing ECF registration instructions letter   | 8            |
| Exhibit D      | Document 6, ECF registration letter                                 | 9            |
| Exhibit E      | NextGen CM/ECF registration-status and help-desk correspondence     | 10–12        |

Case 1:26-cv-01601-RP-DH Document 2 Filed 06/12/26 Page 1 of 1

Name: Cory J. Bennett  
 Address: 6705 W Highway 290  
Ste 607 PMB #268  
Austin, TX 78735-8407  
 Phone Number: (512) 630-5607  
 Email Address: csquaredbennett@gmail.com  
 Pro Se

FILED  
 2026 JUN 12 PM 4:24  
 CLERK, US DISTRICT COURT  
 WESTERN DISTRICT OF TEXAS  
 8F

UNITED STATES DISTRICT COURT  
 WESTERN DISTRICT OF TEXAS

|                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                    |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p>Cory J. Bennett</p> <p style="text-align: center;">v.</p> <p>The University of Texas at Austin; Emily Hsiao;<br/>       James G. Scott; Sally K. Ragsdale;<br/>       Jay Bartroff; Kelli Bradley; Jeff Graves</p> <p style="text-align: right;">PLAINTIFF(S)<br/><br/>DEFENDANT(S)</p> | <p>CASE NUMBER</p> <p style="font-size: 2em; font-weight: bold;">1:26CV01601RP</p> <p style="text-align: center;"><b>APPLICATION FOR PERMISSION<br/>TO FILE ELECTRONICALLY</b></p> |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

As the ☒ Plaintiff ☐ Defendant in the above-captioned matter, I respectfully ask the Court for permission to participate in electronic filing ("e-filing") in this case. I hereby affirm that:

1. I have reviewed the Administrative Policies and Procedures for Electronic Filing in Civil and Criminal Cases and the Local Court Rules available on the Court's website at [www.txwd.uscourts.gov](http://www.txwd.uscourts.gov).
2. I understand that once I register for e-filing, I will receive notices and documents in this instant case only by e-mail and not by U.S. mail.
3. I understand that if my use of the Court's e-filing system is unsatisfactory, my e-filing privileges may be revoked and I will be required to file documents in paper, but will continue to receive documents via e-mail.
4. I understand that I may not e-file on behalf of any other person in this case.
5. I have regular access to the technical requirements necessary to e-file successfully:

Check all that apply.

- ☒ A Computer with internet access.
- ☒ An email account on a daily basis to receive notifications from the Court and notices from the e-filing system.
- ☒ A scanner to convert documents that are only in paper format into electronic files.
- ☐ A printer or copier to create required paper copies such as chambers copies.
- ☒ A word-processing program to create documents; and
- ☒ A PDF reader and a PDF writer to convert word processing documents into PDF format, the only electronic format in which documents can be e-filed.

Date: June 11, 2026

Signature: Cory Bennett



C&C Bennett <csquaredbennett@gmail.com>

---

**Activity in Case 1:26-cv-01601-RP-DH Bennett v. The University of Texas at Austin et al Order on Motion for Electronic Filing**

1 message

---

TXW\_USDC\_Notice@txwd.uscourts.gov <TXW\_USDC\_Notice@txwd.uscourts.gov>  
To: cmecf\_notices@txwd.uscourts.gov

Wed, Jun 24, 2026 at 2:52 PM

**This is an automatic e-mail message generated by the CM/ECF system. Please DO NOT RESPOND to this e-mail because the mail box is unattended.**

**\*\*\*NOTE TO PUBLIC ACCESS USERS\*\*\*** Judicial Conference of the United States policy permits attorneys of record and parties in a case (including pro se litigants) to receive one free electronic copy of all documents filed electronically, if receipt is required by law or directed by the filer. PACER access fees apply to all other users. To avoid later charges, download a copy of each document during this first viewing. However, if the referenced document is a transcript, the free copy and 30 page limit do not apply.

U.S. District Court [LIVE]

Western District of Texas

**Notice of Electronic Filing**

The following transaction was entered on 06/24/2026 at 11:16:16 AM CDT and filed on 06/24/2026

**Case Name:** Bennett v. The University of Texas at Austin et al

**Case Number:** [1:26-cv-01601-RP-DH](#)

**Filer:**

**Document Number:**

**Docket Text:**

**Text Order GRANTING [2] Pro Se Motion for Permission to file Electronically entered by Judge Robert Pitman. Plaintiff will receive further instructions from the Clerk's Office. Plaintiff is not required to file electronically, but the Court strongly recommends that Plaintiff register as soon as possible after receiving the instructions. Once Plaintiff registers, the Court will assume that Plaintiff timely receives electronic notifications and reviews all docket activity. (This is a text-only entry generated by the court. There is no document associated with this entry.) (MHlc)**

**1:26-cv-01601-RP-DH Notice has been electronically mailed to:**

Cory J. Bennett [csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)

**1:26-cv-01601-RP-DH Notice has been delivered by other means to:**

The following document(s) are associated with this transaction:

*This is a re-generated NEF. Created on 6/24/2026 at 2:52 PM CDT*





C&C Bennett <csquaredbennett@gmail.com>

---

**Activity in Case 1:26-cv-01601-RP-DH Bennett v. The University of Texas at Austin et al  
Letter/Correspondence**

1 message

---

TXW\_USDC\_Notice@txwd.uscourts.gov <TXW\_USDC\_Notice@txwd.uscourts.gov>  
To: cmecf\_notices@txwd.uscourts.gov

Wed, Jun 24, 2026 at 2:53 PM

**This is an automatic e-mail message generated by the CM/ECF system. Please DO NOT RESPOND to this e-mail because the mail box is unattended.**

**\*\*\*NOTE TO PUBLIC ACCESS USERS\*\*\*** Judicial Conference of the United States policy permits attorneys of record and parties in a case (including pro se litigants) to receive one free electronic copy of all documents filed electronically, if receipt is required by law or directed by the filer. PACER access fees apply to all other users. To avoid later charges, download a copy of each document during this first viewing. However, if the referenced document is a transcript, the free copy and 30 page limit do not apply.

U.S. District Court [LIVE]

Western District of Texas

**Notice of Electronic Filing**

The following transaction was entered on 6/24/2026 at 2:53 PM CDT and filed on 6/24/2026

**Case Name:** Bennett v. The University of Texas at Austin et al

**Case Number:** [1:26-cv-01601-RP-DH](#)

**Filer:** Cory J. Bennett

**Document Number:** 6

**Docket Text:**

[ECF Registration Instructions Letter to Cory J. Bennett. \(cnr\)](#)

**1:26-cv-01601-RP-DH Notice has been electronically mailed to:**

Cory J. Bennett &nbsp; &nbsp; [csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)

**1:26-cv-01601-RP-DH Notice has been delivered by other means to:**

The following document(s) are associated with this transaction:

**Document description:**Main Document

**Original filename:**n/a

**Electronic document Stamp:**

[STAMP dcecfStamp\_ID=1080075687 [Date=6/24/2026] [FileNumber=34690470-0] [a15aba7253cfae1a95b40fcf36e60fb68def3ba3187e458c0d476f27e41c98342db9a6b5c5d0513d0cfea9db1c10a4f5e531c912fa9659e5dd28a64eb8665447]]



**UNITED STATES DISTRICT COURT  
WESTERN DISTRICT OF TEXAS  
501 West Fifth Street, Suite 1100  
Austin, Texas 78701**

PHILIP J. DEVLIN  
CLERK OF COURT

ANNETTE FRENCH  
CHIEF DEPUTY

Pro Se Filer

RE: ECF Registration in Federal Court Case

To whom it may concern,

The court has granted your motion for permission to file electronically. If you have not already set up your filing permissions, please submit a Support Desk Ticket on our website:

[www.TXWD.USCourts.gov](http://www.TXWD.USCourts.gov)

Once on the website, select the **CM/ECF** option on the blue bar at the top (third option from the right). On the CM/ECF page, under the **General** section (first paragraph in the left column) please click on the blue hyperlink for the **Support Desk**:

**General**

Please note that you may e-file **at any time**, but **CM/ECF support (ECF Support Desk)** is only offered Monday through Friday, 9:00 a.m. to 6:00 p.m. **CST**, excluding court holidays. No after hours support is available. **When relevant, please include the Case Number and the Judge's initials in the Subject: line of all e-mails to the court.**

The link will open an email window. Please complete the email in order to submit the ticket requesting assistance with filing permissions. Be sure to include your name and case number.

The ticket will be assigned and a representative from the help desk will contact you directly. Please note: the district clerk's office does not have the ability to set up electronic filing for you. It must be processed through the Support Desk.

Thank you for your prompt attention to this matter.

Sincerely,

A handwritten signature in blue ink that reads "Christian Rodriguez".

Christian Rodriguez, Deputy Clerk



C&amp;C Bennett &lt;csquaredbennett@gmail.com&gt;

## NextGen CM/ECF Registration Status

7 messages

do\_not\_reply@psc.uscourts.gov &lt;do\_not\_reply@psc.uscourts.gov&gt;

Fri, Jun 26, 2026 at 9:46 AM

Reply-To: txwd\_ecf\_help@txwd.uscourts.gov  
To: csquaredbennett@gmail.com

This email is notification that your NextGen CM/ECF electronic filing registration has been processed. You may check your E-Filing Status by visiting the "Manage My Account" section of the PACER web site and selecting "Check E-File Status" option from the "Maintenance" tab or use this link, <https://pacer.psc.uscourts.gov/pscot/manage/efileStatus.jsf>.

Account Number: [REDACTED]

Court: TEXAS WESTERN DISTRICT COURT

Date/Time Submitted: 06/26/2026 09:44:02 CDT

Transaction ID: 62695

Request: Registration

Transaction Status: Rejected

Comment: Your submission identified you as an attorney. You must submit a party request so that we can link to your account in the court, which is not an attorney account. Thank you

NOTE: Please do not reply to this message. This is an automated message sent from an unmonitored mailbox. If you have questions or comments, please email them to [txwd\\_ecf\\_help@txwd.uscourts.gov](mailto:txwd_ecf_help@txwd.uscourts.gov).

C&amp;C Bennett &lt;csquaredbennett@gmail.com&gt;

Fri, Jun 26, 2026 at 9:50 AM

To: TXWD\_ECF\_help &lt;txwd\_ecf\_help@txwd.uscourts.gov&gt;

Hi,

It doesn't appear that pro se filers can complete e-filing registration due to how the form is set up. There is no option to change my role to a non-attorney role, and there doesn't appear to be another registration option for pro-se. My request was automatically rejected due to this.

Cory Bennett

(512) 630-5607

[csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)

|                    |                                         |
|--------------------|-----------------------------------------|
| Account Number     | [REDACTED]                              |
| Username           | coryjaybennett                          |
| Amount Due         | \$0.00                                  |
| Account Balance    | \$0.00                                  |
| Case Search Status | Active                                  |
| Account Type       | Upgraded PACER Account                  |
| Multifactor Auth   | Not Enrolled ( <a href="#">Enroll</a> ) |

  

### Complete all sections of E-File Registration

**Filer Information**

\* Required Information

Role in Court: Attorney

Title:

Name: Cory Bennett

☐ I acknowledge that I am submitting the e-file registration for the individual listed above. **Note:** If more than one individual uses this account, you must create a new PACER account for the individual who needs e-filing privileges, if she or he does not already have one.\*

[Quoted text hidden]

TXWD\_ECF\_help &lt;txwd\_ecf\_help@txwd.uscourts.gov&gt;

Fri, Jun 26, 2026 at 10:09 AM

To: C&amp;C Bennett &lt;csquaredbennett@gmail.com&gt;

Please contact the PACER Service Center. I am not sure if there's an issue with how your PACER account was established or not.

## PACER Service Center

(800) 676-6856

[pacer@psc.uscourts.gov](mailto:pacer@psc.uscourts.gov)

Just to confirm, are you also an attorney?

TXWD ECF Help Desk  
U.S. District Court  
Western District of Texas  
Support Hours: 8am - 5pm CT

Please visit our website: [www.txwd.uscourts.gov](http://www.txwd.uscourts.gov)

---

**From:** C&C Bennett <[csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)>  
**Sent:** Friday, June 26, 2026 9:51 AM  
**To:** TXWD\_ECF\_help <[txwd\\_ecf\\_help@txwd.uscourts.gov](mailto:txwd_ecf_help@txwd.uscourts.gov)>  
**Subject:** Re: NextGen CM/ECF Registration Status

**CAUTION - EXTERNAL:**

Hi,

It doesn't appear that pro se filers can complete e-filing registration due to how the form is set up. There is no option to change my role to a non-attorney role, and there doesn't appear to be another registration option for pro-se. My request was automatically rejected due to this.

Cory Bennett

(512) 630-5607

[csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)

|                    |                                         |
|--------------------|-----------------------------------------|
| Account Number     | [REDACTED]                              |
| Username           | coryjaybennett                          |
| Amount Due         | \$0.00                                  |
| Account Balance    | \$0.00                                  |
| Case Search Status | Active                                  |
| Account Type       | Upgraded PACER Account                  |
| Multifactor Auth   | Not Enrolled ( <a href="#">Enroll</a> ) |

  

### Complete all sections of E-File Registration

**Filer Information**

\* Required Information

Role in Court Attorney

Title  ▼

Name Cory Bennett

☐ I acknowledge that I am submitting the e-file registration for the individual listed above. **Note:** If more than one individual uses this account, you must create a new PACER account for the individual who needs e-filing privileges, if she or he does not already have one.\*

----- Forwarded message -----  
**From:** <[do\\_not\\_reply@psc.uscourts.gov](mailto:do_not_reply@psc.uscourts.gov)>  
**Date:** Fri, Jun 26, 2026 at 9:47 AM  
**Subject:** NextGen CM/ECF Registration Status  
**To:** <[csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)>

This email is notification that your NextGen CM/ECF electronic filing registration has been processed. You may check your E-Filing Status by visiting the "Manage My Account" section of the PACER web site and selecting "Check E-File Status" option from the "Maintenance" tab or use this link, <https://pacer.psc.uscourts.gov/pscof/manage/efileStatus.jsf>.

Account Number: [REDACTED]

Court: TEXAS WESTERN DISTRICT COURT

Date/Time Submitted: 06/26/2026 09:44:02 CDT

Transaction ID: 62695

Request: Registration

Transaction Status: Rejected

Comment: Your submission identified you as an attorney. You must submit a party request so that we can link to your account in the court, which is not an attorney account. Thank you

NOTE: Please do not reply to this message. This is an automated message sent from an unmonitored mailbox. If you have questions or comments, please email them to [txwd\\_ecf\\_help@txwd.uscourts.gov](mailto:txwd_ecf_help@txwd.uscourts.gov).

**CAUTION - EXTERNAL EMAIL:** This email originated outside the Judiciary. Exercise caution when opening attachments or clicking on links.

---

**C&C Bennett** <[csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)>  
To: TXWD\_ECF\_help <[txwd\\_ecf\\_help@txwd.uscourts.gov](mailto:txwd_ecf_help@txwd.uscourts.gov)>

Fri, Jun 26, 2026 at 10:15 AM

Hi,  
No, I'm not an attorney. I am a pro-se filer, and I don't recall anything attorney-specific in registration for PACER.

I'll go ahead and contact them then. Thank you for your assistance.

Best regards,

Cory Bennett  
(512) 630-5607  
[csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)  
[Quoted text hidden]

---

**C&C Bennett** <[csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)>  
To: [pacer@psc.uscourts.gov](mailto:pacer@psc.uscourts.gov)

Fri, Jun 26, 2026 at 10:16 AM

Hi,  
It doesn't appear that pro se filers can complete e-filing registration due to how the form is set up. There is no option to change my role to a non-attorney role, and there doesn't appear to be another registration option for pro-se. My request was automatically rejected due to this.

I contacted the TXWD ECF help desk about this and they directed me to you. I am wondering if I can get assistance with this.  
[Quoted text hidden]

---

**TXWD\_ECF\_help** <[txwd\\_ecf\\_help@txwd.uscourts.gov](mailto:txwd_ecf_help@txwd.uscourts.gov)>  
To: C&C Bennett <[csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)>

Fri, Jun 26, 2026 at 10:23 AM

Thank you!

[Quoted text hidden]

---

**C&C Bennett** <[csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)>  
To: [pacer@psc.uscourts.gov](mailto:pacer@psc.uscourts.gov)

Fri, Jul 3, 2026 at 12:08 PM

Hi,  
I am a pro se plaintiff in Bennett v. The University of Texas at Austin et al., No. 1:26-cv-01601-RP-DH. My NextGen CM/ECF registration request for the Western District of Texas was rejected on June 26, 2026 because the system treated it as an attorney registration. The TXWD ECF Help Desk directed me to contact PACER, and I emailed PACER on June 26, 2026.

As of July 3, 2026, I have not received a response. I also have not received the summons or instructions needed to complete service and electronic filing.

Please advise what steps I need to take to complete pro se electronic filing registration and obtain the materials or instructions needed for service.

Cory Bennett  
(512) 630-5607  
[csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com)  
[Quoted text hidden]

# **Attachment 3**

Dkt. 11

**UNITED STATES DISTRICT COURT  
WESTERN DISTRICT OF TEXAS  
AUSTIN DIVISION**

**CORY J. BENNETT**, Plaintiff,

**Civil Action No. 1:26-cv-01601-RP-DH**

v.

**THE UNIVERSITY OF TEXAS AT  
AUSTIN; EMILY HSIAO; JAMES G.  
SCOTT; SALLY K. RAGSDALE; JAY  
BARTROFF; KELLI BRADLEY; and  
JEFF GRAVES**, Defendants.

**PLAINTIFF’S EMERGENCY MOTION TO EXPEDITE DISPOSITION OF  
IFP APPLICATION (DKT. 3) AND SUMMONS MOTION (DKT. 10)**

Plaintiff Cory J. Bennett respectfully moves for expedited disposition of his Application to Proceed in Forma Pauperis, Dkt. 3, and Motion for Order Directing Issuance of Summonses and Pro Se Electronic-Filing Instructions, Dkt. 10. A ruling on those motions is needed before summonses can issue and Defendants can receive the notice required for Plaintiff to renew his preliminary-injunction motion. That motion seeks relief under the Americans with Disabilities Act and Section 504 of the Rehabilitation Act concerning who at UT Austin will make the disability-accommodation and enrollment decisions Plaintiff needs for Fall 2026. The remaining service and briefing process will require time before the university’s registration and add deadlines. Plaintiff therefore requests prompt disposition of Dkts. 3 and 10.

**Background**

Plaintiff submitted the complaint, IFP application, and proposed summonses on June 12, 2026. The IFP application was entered as Document 3 on June 23. The Court’s June 26 order restricted access to the unredacted affidavit but did not decide the application.

The Court denied Plaintiff’s preliminary-injunction motion, Dkt. 8, on July 2 because Plaintiff had not shown that Defendants received notice of the motion or lawsuit. Plaintiff

then submitted Dkt. 10, which asks the Court to direct issuance of the proposed summonses or identify any remaining step Plaintiff must complete. The Clerk entered Dkt. 10 on July 6.

On July 7, the Court stated that Plaintiff may refile his preliminary-injunction motion after giving notice to the opposing parties and may then request an expedited briefing schedule. The Court separately referred Dkt. 10 to United States Magistrate Judge Dustin Howell. No summons has issued, and Dkts. 3 and 10 remain pending.

### **Expedited Consideration**

Under 28 U.S.C. §1915(a)(1), the Court may allow an action to proceed without prepayment of fees when the required affidavit establishes inability to pay. Section 1915(e)(2) requires dismissal if a statutory ground applies. Plaintiff asks the Court to decide his IFP application and complete any review the Court determines must precede service.

The complaint asserts claims under the Americans with Disabilities Act and Section 504 of the Rehabilitation Act, and Dkt. 8 seeks preliminary relief on those claims. Plaintiff maintains that the complaint plausibly states at least one claim supporting that relief. If the Court permits such a claim to proceed after review under §1915(e)(2), process may issue and the Court may consider a renewed preliminary-injunction motion after Defendants receive notice.

If the Court grants IFP status and permits any claim to proceed, 28 U.S.C. §1915(d) directs court officers to issue and serve process, and Federal Rule of Civil Procedure 4(c)(3) requires the Court to order service. Rule 4(b), also cited in Dkt. 10, requires the Clerk to sign, seal, and issue a properly completed summons presented after the complaint is filed.

Formal service cannot begin until the Court decides the IFP application and summonses issue. The summonses must then be served before Plaintiff can renew his motion and the parties can brief it.

Dkt. 8 asks that officials who were not involved in the events described in the complaint make Plaintiff's Fall 2026 disability-accommodation and enrollment decisions. UT Austin's



general registration runs from August 20 through 27, classes begin August 24, and the undergraduate add deadline is August 31. Dkt. 8 at 2. Because service and briefing must occur before the Court can consider a renewed motion, continued delay in resolving Dkts. 3 and 10 may limit the relief available before those university deadlines.

An expedited ruling would allow service and briefing to begin while Fall 2026 relief can still be considered, with full statutory review and time for Defendants to receive notice and respond.

### **Relief Requested**

Plaintiff respectfully requests that the Court decide Dkts. 3 and 10, complete any review that must precede service, and identify anything else Plaintiff must provide. If the Court grants IFP status and permits any claim to proceed, Plaintiff asks the Court to direct issuance and service of the proposed summonses under 28 U.S.C. §1915(d) and Federal Rule of Civil Procedure 4(c)(3). Plaintiff also asks the Court to extend the Rule 4(m) service period to account for the time Dkts. 3 and 10 remained pending and to grant any other appropriate relief.

No Defendant has appeared, no opposing counsel is of record, and no summons has issued. Because no opposing counsel is available, Plaintiff could not confer about this motion and does not characterize it as unopposed.

Respectfully submitted,

Dated: July 16, 2026



---

Cory J. Bennett, Plaintiff Pro Se  
Mailing Address: 6705 W Highway 290  
Ste 607 PMB #268  
City/State/ZIP: Austin, TX 78735-8407  
Telephone: (512) 630-5607  
Fax: None  
Email: csquaredbennett@gmail.com

# **Attachment 4**

Dkt. 12

**UNITED STATES DISTRICT COURT  
WESTERN DISTRICT OF TEXAS  
AUSTIN DIVISION**

**CORY J. BENNETT**, Plaintiff,

**Civil Action No. 1:26-cv-01601-RP-DH**

**v.**

**THE UNIVERSITY OF TEXAS AT  
AUSTIN; EMILY HSIAO; JAMES G.  
SCOTT; SALLY K. RAGSDALE; JAY  
BARTROFF; KELLI BRADLEY; and  
JEFF GRAVES**, Defendants.

**PLAINTIFF’S SUPPLEMENTAL MOTION FOR PROMPT RESOLUTION OF  
IFP STATUS AND § 1915 REVIEW**

Plaintiff Cory J. Bennett supplements Dkt. 11 as less time remains to obtain effective Fall 2026 relief. This motion also identifies the specific decisions needed to complete pre-service review: a disposition of Dkt. 3 under 28 U.S.C. § 1915(a)(1) and completion of § 1915(e)(2) review through an order, a report and recommendation, or both. For each defendant against whom at least one claim may proceed, Plaintiff also requests issuance of a summons and Marshal service of the then-operative complaint.

Plaintiff’s sworn affidavit establishes that prepayment of the filing fee and serving costs would prevent him from meeting ordinary living expenses. Dkt. 3 therefore satisfies the financial standard under 28 U.S.C. § 1915(a)(1). An IFP determination rests solely on economic criteria. *Gibbs v. Jackson*, 92 F.4th 566, 569 (5th Cir. 2024). For each defendant against whom the Court authorizes at least one claim to proceed, Rule 4(c)(3) requires court-ordered service, and Plaintiff may rely on the United States Marshal to complete it. *Id.*

Fall registration at UT Austin resumes August 19, and classes begin August 24, leaving limited time for service, briefing, and a ruling.

**Pending IFP and Screening Decisions**

Plaintiff submitted their complaint, IFP application, and proposed summonses on June 12, 2026. The Clerk entered the IFP application as Dkt. 3 on June 23. The Court has not ruled

on Dkt. 3, identified any defendant for service, authorized issuance of process, or stated the result of its § 1915(e)(2) review. Those unresolved pre-service matters continue to prevent Plaintiff from completing notice and refiling the preliminary-injunction motion as permitted by the Court’s July 7 order.

Plaintiff’s preliminary-injunction motion was entered as Dkt. 8 on July 1. On July 2, the Court denied the motion as Plaintiff had not shown that Defendants received notice of the motion or the lawsuit.

Plaintiff filed Dkt. 10 to obtain the summonses and service process needed to provide notice. The Clerk entered Dkt. 10 on July 6, and the Court referred it to United States Magistrate Judge Dustin Howell on July 7.

The Court also denied reconsideration on July 7. The order states: “Plaintiff may refile his Motion for Preliminary Injunction at a later date once notice is given to opposing parties. In that Motion, Plaintiff may request a briefing schedule for the Court’s consideration.”

Plaintiff filed Dkt. 11 on July 21 after Dkts. 3 and 10 remained unresolved. On July 22, the Court referred Dkt. 11 to Judge Howell “for disposition” under 28 U.S.C. § 636(b)(1)(A), Rule 72, and Rule 1(c) of Appendix C to the Western District’s Local Rules. No order has resolved Dkt. 3, Dkt. 10, or Dkt. 11. No summons has issued.

### **Pre-Service Review and Resulting Service**

Section 1915(a)(1) governs financial eligibility to proceed without prepayment. Section 1915(e)(2) requires dismissal when the Court determines that a listed ground applies. Rule 72 directs a magistrate judge to conduct assigned nondispositive and dispositive proceedings promptly. Plaintiff requests prompt completion since the remaining Fall 2026 enrollment and course-add periods are now measured in days, and delays in service and briefing could prevent effective relief.

The pending pre-service process can be completed through a ruling on Dkt. 3, the disposition resulting from § 1915(e)(2) review, and, for each defendant against whom at least

one claim may proceed, a service order. The service order may direct the Clerk to issue the corresponding summons and direct the Marshal to serve the then-operative complaint.

The referral procedures also address any proposed claim dismissal. A magistrate judge may enter orders on nondispositive matters under § 636(b)(1)(A). A claim-dispositive screening result may be presented to the district judge through proposed findings and recommendations under § 636(b)(1)(B) and Rule 72(b). The screening disposition may authorize service on some defendants, recommend dismissal of other claims or defendants, or do both.

### **Remaining Time for Fall 2026 Relief**

Plaintiff's preliminary-injunction request concerns Fall 2026 accommodations, enrollment, course planning, and prerequisite decisions. The proposed relief includes administrative enrollment and deadline adjustments when ordinary registration dates have passed. Dkt. 8 at 1–2.

UT's current Fall 2026 schedule resumes registration on August 19 and begins classes on August 24. Ordinary class-add periods close August 27 for graduate and law students and August 31 for undergraduate students. Late-registration and permission-based add procedures remain available through September 9. University of Texas at Austin, Office of the Registrar, *2026–2027 Academic Calendar; When to Register and Pay, Fall 2026* (last visited Aug. 6, 2026). Those later procedures leave a limited opportunity for administrative relief, but they do not eliminate the time required for summons issuance, service, renewed Rule 65 briefing, judicial consideration, and University implementation.

After IFP review and screening, several steps remain before Plaintiff can obtain effective Fall 2026 relief. For each defendant authorized for service, the Clerk must issue the corresponding summons, and the Marshal must serve the summons and then-operative complaint. Plaintiff must then refile the preliminary-injunction motion as permitted by the July 7 order. Defendants must receive an opportunity to respond. The Court must then

decide the motion, and any Defendant against whom relief is granted must comply with the Court's order.

Prompt completion of pre-service review can preserve the remaining possibility of effective Fall 2026 relief, including late or administrative enrollment, course registration, and implementation of prospective accommodations. If the Court requires additional financial information, corrected summonses or other process, clarification of the pleading, an amended complaint, or a hearing before completing review, Plaintiff requests that the Court identify or schedule the required step promptly and set any necessary response deadline.

### **Requested Relief**

Plaintiff respectfully requests that the Court:

- A. grant Plaintiff's Application to Proceed in Forma Pauperis, Dkt. 3, under the economic standard in 28 U.S.C. § 1915(a)(1);
- B. complete the pending review under 28 U.S.C. § 1915(e)(2) through any appropriate order and, if Judge Howell proposes dismissal of any claim or defendant, a report and recommendation under 28 U.S.C. § 636(b)(1)(B) and Rule 72(b);
- C. for each defendant against whom at least one claim may proceed, direct the Clerk to issue a summons and order the United States Marshal to serve the summons and the then-operative complaint under 28 U.S.C. § 1915(d) and Rule 4(c)(3);
- D. permit issuance and service on any defendant for whom the screening disposition authorizes service, without delaying that service solely because the same disposition recommends dismissal of other claims or defendants;
- E. resolve Dkts. 10 and 11 consistently with the IFP and screening dispositions;
- F. within five business days after this motion is entered on the docket, if practicable, rule on Dkt. 3 and complete § 1915(e)(2) review by order, report and recommendation, or both. If that is not practicable, identify within that period any additional submission required from Plaintiff and set a prompt date certain for completing pre-service review;

- G. extend the Rule 4(m) period through 90 days after the Clerk issues the summonses authorized by the Court, or for another period sufficient for Marshal service; and
- H. grant further relief necessary to complete service and preserve the remaining possibility of effective Fall 2026 relief.

No Defendant has appeared, no summons has issued, and no opposing counsel is of record. Plaintiff therefore could not confer regarding this motion and does not characterize it as unopposed.

Respectfully submitted,

Dated: August 6, 2026

A handwritten signature in black ink that reads "Cory Bennett". The signature is written in a cursive, flowing style.

Cory J. Bennett, Plaintiff Pro Se  
Mailing Address: 6705 W Highway 290  
Ste 607 PMB #268  
City/State/ZIP: Austin, TX 78735-8407  
Telephone: (512) 630-5607  
Fax: None  
Email: csquaredbennett@gmail.com

# **Attachment 5**

Dkt. 13



**UNITED STATES DISTRICT COURT  
WESTERN DISTRICT OF TEXAS  
AUSTIN DIVISION**

**CORY J. BENNETT**, Plaintiff,

**Civil Action No. 1:26-cv-01601-RP-DH**

v.

**THE UNIVERSITY OF TEXAS AT  
AUSTIN; EMILY HSIAO; JAMES G.  
SCOTT; SALLY K. RAGSDALE; JAY  
BARTROFF; KELLI BRADLEY; and  
JEFF GRAVES**, Defendants.

**PLAINTIFF’S EMERGENCY MOTION TO MODIFY REFERRAL AND FOR  
PROMPT DISPOSITION OF DKT. 3 AND DKTS. 10–12**

Plaintiff Cory J. Bennett respectfully asks Judge Pitman to decide this Motion and modify the referrals of Dkt. 3 and Dkts. 10–12. Plaintiff asks the Court to decide his application to proceed in forma pauperis (“IFP”) and complete review under § 1915(e)(2). The Court can then decide whether process should issue and how service should proceed. Plaintiff requests prompt rulings or a date certain as notice and briefing must occur before the Court can consider a renewed preliminary-injunction motion concerning his Fall 2026 accommodations and enrollment.

**Background**

Plaintiff’s June 12, 2026 submission included his Complaint and IFP application together with proposed summonses. The Clerk entered the IFP application as Dkt. 3 on June 23. Dkt. 3 and the associated review under 28 U.S.C. § 1915(e)(2) remain pending. Issuance of process awaits those rulings.

Plaintiff’s preliminary-injunction motion was entered as Dkt. 8 on July 1. It sought to place Plaintiff’s Fall 2026 accommodation and enrollment decisions with UT officials who had not participated in the October 2025 restrictions or the later decisions about Plaintiff’s accommodations and enrollment. The motion requested briefing and a decision after service

or other notice accepted under Rule 65(a)(1). The Court’s July 2 text order denied Dkt. 8 for lack of a showing that Defendants had received notice of the motion or lawsuit. Plaintiff sought reconsideration in Dkt. 9. In its July 7 ruling on Dkt. 9, the Court stated that Plaintiff “may refile his Motion for Preliminary Injunction at a later date once notice is given to opposing parties” and may then request a briefing schedule.

Plaintiff pursued the rulings needed for notice through three successive filings.

First, Dkt. 10 requested issuance of the proposed summonses or identification of any remaining step required for issuance. The Clerk entered Dkt. 10 on July 6, and it was referred to Judge Howell on July 7.

Second, Plaintiff executed Dkt. 11 on July 16 after Dkts. 3 and 10 remained unresolved. The Clerk entered Dkt. 11 on July 21. Judge Pitman’s July 22 text order referred Dkt. 11 to Judge Howell “for disposition” under 28 U.S.C. § 636(b)(1)(A) and Rule 72. The order also cited Rule 1(c) of Appendix C to this Court’s Local Rules.

Third, Plaintiff filed Dkt. 12 on August 6 requesting rulings on IFP status and § 1915(e)(2) review. It also asked the Court to identify the claims and Defendants that may proceed and to enter the resulting orders for process and service. Dkt. 12 requested completion within five business days if practicable, with a prompt completion date for any remaining task. The notice of electronic filing states: “Motions referred to Judge Dustin M. Howell.”

The five business days requested in Dkt. 12 ended August 13. Dkt. 3 and its associated § 1915(e)(2) review remain pending, as do Dkts. 10–12. Issuance of process awaits those rulings.

### **Basis for Relief**

Judge Pitman’s November 24, 2025 docket-management order directs referral of an IFP application for disposition. It also requires “a prompt recommendation as to whether the case should be dismissed as frivolous pursuant to 28 U.S.C. § 1915(e).” *In re Court Docket*

*Management for Austin Division*, Docket Management Order ¶ 2 (W.D. Tex. Nov. 24, 2025). Upon completion of those tasks, the Magistrate Judge must return the case to the District Court for further proceedings. *Id.*

Rule 72 likewise requires a magistrate judge to “promptly conduct the required proceedings” on referred nondispositive and dispositive matters. Fed. R. Civ. P. 72(a), (b)(1). Rule 72’s objection procedures apply after an order or recommendation issues, and neither has issued here. Plaintiff therefore asks Judge Pitman to modify the referrals or direct their prompt completion. Appendix C provides that assignments to magistrate judges are made by court order or a judge’s special designation and that a magistrate judge must conform to the requirements specified in an order of reference. W.D. Tex. App. C, R. 2(a), 3(a).

These pretrial referrals arise under 28 U.S.C. § 636(b). Section 636(b)(1) permits a district judge to designate a magistrate judge to act on specified pretrial matters. The District Court remains responsible for final disposition of matters reserved for an Article III judge. The Fifth Circuit has explained that magistrate judges “support, but cannot supplant, district judges.” Final authority over substantial issues must remain with the district court. *Lawson v. Stephens*, 900 F.3d 715, 716, 719–20 (5th Cir. 2018).

Judge Pitman entered the docket-management and referral orders, so the requested modification falls within § 636(b).

### **Expedited Consideration**

Dkt. 12 identified the steps following § 1915(e)(2) review. After process issues and Defendants receive notice, a renewed preliminary-injunction motion would require briefing and a decision. UT Austin would then need time to implement any order before its Fall registration and add deadlines. Each step depends on disposition of Dkt. 3 and completion of the § 1915(e)(2) review.

UT Austin’s published Fall 2026 calendar sets August 20 registration for readmitted students, with classes beginning August 24. Undergraduate late registration continues

through August 31 and permission-based registration through September 9. University of Texas at Austin, Office of the Registrar, *2026–2027 Academic Calendar; When to Register and Pay, Fall 2026* (last visited Aug. 13, 2026). The later registration periods leave time for administrative action after the ordinary readmission-application cutoff.

Every additional business day before these rulings consumes time needed for summons issuance, service, renewed filing, briefing, decision, and implementation during the remaining Fall 2026 registration and add periods. Continued delay leaves less time to obtain practical relief before Plaintiff can present a renewed preliminary-injunction motion.

Plaintiff’s admission history provides a concrete example of mid-August administrative action. UT Admissions notified Plaintiff on August 13, 2024 that his admission decision had been updated. UT confirmed his Fall 2024 admission the next day. Plaintiff received confirmation of August orientation on August 15. After completing an advising meeting, his advisor stated that registration would occur on August 21. The Registrar then confirmed that Plaintiff had been added to a Fall 2024 course. Bennett Decl. ¶¶ 2–5, Exs. 1-A–1-E. That original transfer admission required new-student orientation and advising before registration. Plaintiff is now a returning senior and does not require incoming-transfer orientation. The 2024 chronology therefore demonstrates that UT completed a more administratively involved admission-and-registration process during the second half of August.

The Fifth Circuit has explained that judicial delay must be evaluated in context as cases require action on different timetables; urgency and repeated date-specific requests inform that analysis. *In re Fort Worth Chamber of Commerce*, 100 F.4th 528, 534–35 (5th Cir. 2024). That case involved a pending preliminary-injunction motion. Here, the unresolved IFP application and § 1915(e)(2) review control when process may issue. Defendants must then receive notice before Plaintiff may renew his preliminary-injunction motion.

The July 7 ruling permits Plaintiff to renew his preliminary-injunction motion only after notice; because the unresolved threshold proceedings presently prevent that notice, Plaintiff cannot yet invoke the renewed preliminary-injunction procedure the Court prescribed.

Further delay shortens the time available for briefing, decision, and implementation altogether.

### **Requested Relief**

Plaintiff respectfully requests the following relief:

- A. Retain this Motion for disposition by Judge Pitman.
- B. Modify the referrals of Dkt. 3 and Dkts. 10–12 for disposition by Judge Pitman.
- C. Decide the IFP application, complete review under § 1915(e)(2), and enter any resulting process and service orders.
- D. Alternatively, leave the referrals in place and direct disposition of Dkts. 3 and 10–12 by August 18, 2026, if practicable. If disposition cannot be completed by then, identify at once any remaining task or submission required from Plaintiff and set the earliest practicable completion date that preserves time for service, an expedited response, a reply, and a ruling during the remaining Fall 2026 registration and add periods.
- E. Grant any further case-management relief needed to permit consideration of a renewed preliminary-injunction motion while UT Austin’s remaining Fall 2026 registration and add procedures remain available.

No Defendant has appeared or has counsel of record, so Plaintiff could not confer before filing.

Respectfully submitted,

Dated: August 14, 2026



---

Cory J. Bennett, Plaintiff Pro Se  
Mailing Address: 6705 W Highway 290  
Ste 607 PMB #268  
City/State/ZIP: Austin, TX 78735-8407  
Telephone: (512) 630-5607  
Fax: None  
Email: csquaredbennett@gmail.com

**UNITED STATES DISTRICT COURT  
WESTERN DISTRICT OF TEXAS  
AUSTIN DIVISION**

**CORY J. BENNETT**, Plaintiff,

**Civil Action No. 1:26-cv-01601-RP-DH**

v.

**THE UNIVERSITY OF TEXAS AT  
AUSTIN; EMILY HSIAO; JAMES G.  
SCOTT; SALLY K. RAGSDALE; JAY  
BARTROFF; KELLI BRADLEY; and  
JEFF GRAVES**, Defendants.

**EXHIBIT 1**

**DECLARATION OF CORY J. BENNETT  
IN SUPPORT OF EMERGENCY MOTION TO MODIFY REFERRAL**

I, Cory J. Bennett, declare as follows:

1. I am the Plaintiff in this action. I have personal knowledge of the facts stated in this declaration and can testify to them if the Court holds a hearing.
2. On August 13 and 14, 2024, UT Austin notified me that my admission decision had been updated and then confirmed my Fall 2024 admission. True and correct copies are attached as Exhibits 1-A and 1-B.
3. On August 15, 2024, UT Austin confirmed my registration for virtual orientation scheduled for August 19 through 21. A true and correct copy is attached as Exhibit 1-C.
4. By August 20, I had completed an orientation advising meeting. My advisor's follow-up email stated that registration would occur on August 21. A true and correct copy is attached as Exhibit 1-D.
5. On August 21, 2024, the UT Registrar confirmed that I had been added to a Fall 2024 course from a waitlist. A true and correct copy is attached as Exhibit 1-E.
6. My Fall 2024 admission was an original transfer admission. The process included new-student orientation and advising before registration. I am now a returning senior and do not require new-student orientation or transfer-student advising before registering. The present readmission process therefore does not require the onboarding steps that preceded my Fall 2024 registration.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed on August 14, 2026, in Austin, Texas.



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Cory J. Bennett



C&C Bennett <csquaredbennett@gmail.com>

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## Decision Update

3 messages

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**Sandra Sanchez** <sandra.sanchez@austin.utexas.edu>  
To: csquaredbennett@gmail.com

Tue, Aug 13, 2024 at 1:46 PM

Hello,

An update has been made regarding your admission decision. Please log into your MyStatus portal at your earliest convenience.

Kind Regards,

**Sandra Sanchez**, Admissions Counselor

The University of Texas at Austin | Office of Admissions | [admissions.utexas.edu](https://admissions.utexas.edu)

---

**C&C Bennett** <csquaredbennett@gmail.com>  
To: Sandra Sanchez <sandra.sanchez@austin.utexas.edu>

Tue, Aug 13, 2024 at 3:39 PM

Hi,

Thank you! I saw that I was accepted into the Mathematics program at UT Austin, though I'm wondering how I should go about starting the enrollment process and submitting documents so soon before the semester starts.

I also don't see anything on MyStatus about accepting admission or paying an enrollment deposit. Is there a different place I should be looking or a way I can do this in-person at a cashier's office?

Cory Bennett

[Quoted text hidden]

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**Sanchez, Sandra** <sandra.sanchez@austin.utexas.edu>  
To: C&C Bennett <csquaredbennett@gmail.com>

Fri, Aug 16, 2024 at 10:38 AM

Hello,

I apologize for the late response.

We received your enrollment deposit. Please visit your MyStatus portal to view items that may need to be completed if you haven't done so already. For more information on your next steps, I encourage you to reach out to our [New Student Services Office](#).

Please let me know if you have any further questions.

Hook 'em!

Kind Regards,

**Sandra Sanchez**, Admissions Counselor

The University of Texas at Austin | Office of Admissions | (512) 695-7218 | [admissions.utexas.edu](https://admissions.utexas.edu)

---

**From:** C&C Bennett <csquaredbennett@gmail.com>  
**Sent:** Tuesday, August 13, 2024 3:39 PM  
**To:** Sanchez, Sandra <sandra.sanchez@austin.utexas.edu>  
**Subject:** Re: Decision Update

[Quoted text hidden]



C&C Bennett <csquaredbennett@gmail.com>

👉 It's official! 👉

1 message

**The University of Texas at Austin** <reply@austin.utexas.edu>  
Reply-To: transferadmissions@austin.utexas.edu  
To: csquaredbennett@gmail.com

Wed, Aug 14, 2024 at 2:02 PM



## You're a Longhorn!

Dear Cory,

Congratulations on your admission to The University of Texas at Austin! I'm thrilled to welcome you to our **Longhorn** family.

Your official acceptance packet is on its way to you, but we didn't want to wait for its arrival to celebrate your achievements as a student and member of your community. Share your excitement on social media with a post, and don't forget to tag us **@BeALonghorn**.

You have the world-changing ambition, imagination and willingness to work hard that all **Longhorns** share, and we can't wait for you to join us on the Forty Acres in the fall!



Hook 'em,



Miguel V. Wasielewski, Ph.D.  
Vice Provost of Admissions  
The University of Texas at Austin



The University of Texas at Austin  
Office of Admissions



The University of Texas at Austin

Office of Admissions

P.O. Box 300609

Austin, Texas 78703

[Call the UT Austin Office of Admissions 512-475-7399](tel:512-475-7399)

This email was sent to [csquaredbennett@gmail.com](mailto:csquaredbennett@gmail.com) by The University of Texas at Austin.  
[Unsubscribe](#) from The University of Texas at Austin.



C&C Bennett <csquaredbennett@gmail.com>

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## VIRTUAL New Student Orientation 2024 Confirmation Notification

2 messages

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nss@austin.utexas.edu <nss@austin.utexas.edu>  
To: CSQUAREDBENNETT@gmail.com

Thu, Aug 15, 2024 at 9:39 PM

August 15, 2024

Cory J Bennett

Dear Cory:

Thank you for registering for orientation at The University of Texas at Austin! This email is to confirm your registration for VIRTUAL New Student Orientation 2024 starting on Monday, August 19, 2024 through Wednesday, August 21, 2024. Visit <https://newstudentservices.utexas.edu/transfer> to review your VIRTUAL orientation schedule and for other critical information about your session.

Be sure that you are available for the entirety of your orientation session to participate in required sessions such as your college meeting, academic advising, and course registration.

You can view your orientation registration status here: <https://utdirect.utexas.edu/apps/dos/orientation/student/confirmation/>.

### VIRTUAL ATTENDANCE

You will be able to locate virtual meeting links and other information on the Canvas orientation page on the first morning of orientation beginning at 8 a.m. CT. Please note, your Canvas orientation page will not become available until 10 calendar days prior to the start of your session. You will receive an email from New Student Services letting you know when it is available.

### PAYMENT

Your orientation charge has been automatically deferred and payment is not due at this time. Please note that deferment means the balance is due at a later date, and the balance will show on your 'What I Owe' account until your financial aid award is disbursed or you complete payment. If you receive financial aid, your payment will be deducted from your award when financial aid is released at the start of the term. Please be aware that your financial aid may not cover the entire orientation cost. If not, you will need to pay any remaining balance by the first day of classes (Monday, August 26, 2024).

Although your payment has been deferred, you also have the option to pay your orientation bill. Visit your orientation status page at <https://utdirect.utexas.edu/apps/dos/orientation/student/confirmation/> to complete payment.

### CANCELLATION AND REFUND POLICY

Registration for August Orientation cannot be canceled, and no refunds will be granted.

If you register to attend a June or July orientation session and fail to attend (no show), the fees are non-refundable and can only be transferred to an August Orientation session. You must register to attend August Orientation if you do not attend orientation in June or July. There are no cancellations or refunds for August Orientation. All students, including those with a deferred charge, are responsible for any outstanding orientation charges.

### NEXT STEPS

Follow us on social media

You can find @UTOrientation on Instagram, X and Facebook for all things UT Orientation. Join the official UT Austin Transfer Student Facebook group to connect with your fellow Longhorns.  
<https://www.facebook.com/groups/UTAustinTransferStudents>

More information will be shared as your orientation date approaches and updates can be found on our website (<https://newstudentservices.utexas.edu>). For further questions, please refer to the New Student Orientation FAQ page: <https://newstudentservices.utexas.edu/orientation/orientation-FAQ>.

We are excited to host you at VIRTUAL New Student Orientation 2024!

[CSQUAREDBENNETT@GMAIL.COM](mailto:CSQUAREDBENNETT@GMAIL.COM)

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C&C Bennett <csquaredbennett@gmail.com>  
To: "cory.bennett@utexas.edu" <cory.bennett@utexas.edu>

Thu, Aug 15, 2024 at 9:42 PM

[Quoted text hidden]



C&C Bennett <csquaredbennett@gmail.com>

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## Orientation Advising Meeting Follow-up

1 message

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Rutkowski, Aaron <ski@austin.utexas.edu>

Tue, Aug 20, 2024 at 10:02 AM

To: "CSQUAREDBENNETT@GMAIL.COM" <CSQUAREDBENNETT@gmail.com>

Hello,

It was great meeting with you for your orientation advising meeting! Attached is the worksheet we completed together. This email contains important info and reminders about registration. Please read everything carefully.

### General Reminders:

- Register for your TrIG/TxT first
- Have backups ready for your non-cluster courses
- Register for at least 12 hours total to be a full-time student
- Registration is this Wednesday at 1pm. Stop by on Zoom from 1-2pm for registration support from an advisor:  
<https://utexas.zoom.us/my/aaronrutkowski>
- CNS Core Course List (if applicable):
  - <https://ugs.utexas.edu/core-curriculum/requirements/current>
  - These are classes that will count towards the UT Core Curriculum requirements
  - Avoid taking a core course in an area of the Core Curriculum that you may have already completed through AP, IB, or transferred-in dual credit.
- Post Registration:
  - If taking CH 301 in the fall, don't forget to complete the [Chemistry Assessment](#)
    - The CH assessment is time consuming; we encourage you to start it as soon as possible
  - If you are retaking the [UTMA](#) make sure you set aside time to review the [Math Readiness Package](#)
    - As a reminder you have a total of 2 attempts per semester to meet the required UTMA score
- **MAKE SURE TO REVIEW THE FOLLOWING:**
  - [College of Natural Sciences Resources](#)
  - [Video on Understanding the Course Schedule](#)
  - [Video on How to Register for Classes](#)
- Follow @CNS\_Advising on [Instagram](#) and [Twitter](#)

Additionally, We have several CNS OAs who will be available tomorrow from 1 to 5 PM at the following Zoom link:

<https://utexas.zoom.us/j/91907686343>

The OAs will be available for drop-in advising for first-year students who have been advised but want to talk further about registration and building a schedule. Please feel free to give the link to first-year students you may have seen today or will see tomorrow.

-

Take care and have a great day!

Respectfully,

Aaron Rutkowski (he/him/his) U.S. Army, Retired

Transfer Academic Advisor (CELA) College of Natural Sciences

The University of Texas at Austin Office: WCH 1.106 | [ski@austin.utexas.edu](mailto:ski@austin.utexas.edu)

**Day(s) out of office: Friday**

**Students, please include your EID with your email!**



*A climate conducive to learning and creating knowledge is the right of every person in our community.*

[cns.utexas.edu/diversity](https://cns.utexas.edu/diversity)

Follow CNS Advising: [Twitter](#) & [Instagram](#)



**cjb5497.pdf**  
122K



C&C Bennett <csquaredbennett@gmail.com>

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## UT Registrar: fall 24 waitlist update

2 messages

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**sis-wait-lists@utlists.utexas.edu** <sis-wait-lists@utlists.utexas.edu>  
To: CSQUAREDBENNETT@gmail.com

Wed, Aug 21, 2024 at 4:18 PM

Congratulations, waiting for classes paid off! You were added into a course off of the waitlist. Please check your class listing at <https://utdirect.utexas.edu/registration/classlist.WBX> to see your new class schedule.

If you are on a waitlist for another section of this course and no longer want it, remove yourself from that section's waitlist.

Sincerely,  
UT Registrar  
\*\*THIS IS AN AUTOMATED EMAIL MESSAGE. DO NOT REPLY!\*\*

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**sis-wait-lists@utlists.utexas.edu** <sis-wait-lists@utlists.utexas.edu>  
To: CSQUAREDBENNETT@gmail.com

Thu, Aug 22, 2024 at 12:41 AM

[Quoted text hidden]

UNITED STATES DISTRICT COURT  
WESTERN DISTRICT OF TEXAS  
AUSTIN DIVISION

CORY J. BENNETT, Plaintiff,

Civil Action No. 1:26-cv-01601-RP-DH

v.

THE UNIVERSITY OF TEXAS AT  
AUSTIN; EMILY HSIAO; JAMES G.  
SCOTT; SALLY K. RAGSDALE; JAY  
BARTROFF; KELLI BRADLEY; and  
JEFF GRAVES, Defendants.

**[PROPOSED] ORDER ON PLAINTIFF'S EMERGENCY MOTION TO  
MODIFY REFERRAL AND FOR PROMPT DISPOSITION OF DKT. 3 AND  
DKTS. 10–12**

Before the Court is Plaintiff's Emergency Motion to Modify Referral and for Prompt Disposition of Dkt. 3 and Dkts. 10–12. The Court has considered the Motion and the record.

**IT IS ORDERED** that the Motion is GRANTED to the following extent:

1. Dkt. 3 and Dkts. 10–12 shall be disposed of by August 18, 2026, if practicable. The Court may modify or withdraw the existing referrals as necessary to accomplish that disposition.
2. If disposition cannot be completed by August 18, 2026, any remaining task or submission required from Plaintiff shall be identified at once, and the earliest practicable completion date shall be set.
3. The IFP application shall be decided, and review under 28 U.S.C. § 1915(e)(2) shall be completed in accordance with 28 U.S.C. § 636(b), including submission of any necessary report and recommendation to the District Court. Any resulting process and service orders shall then be entered.

This Order does not determine the outcome of the IFP application or review under 28 U.S.C. § 1915(e)(2). All other referrals and provisions of the Court's docket-management order remain unchanged.

SIGNED this \_\_\_\_\_ day of August 2026.

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ROBERT PITMAN  
UNITED STATES DISTRICT JUDGE

## **Attachment 6**

November 24, 2025 Court Docket Management Order

IN THE UNITED STATES DISTRICT COURT  
FOR THE WESTERN DISTRICT OF TEXAS  
AUSTIN DIVISION

IN RE: COURT DOCKET MANAGEMENT   §  
                                                         §  
FOR AUSTIN DIVISION                   §

**ORDER**

In accordance with the authority vested in the United States Magistrate Judge pursuant to Rule 1 of the Local Rules for the Assignment of Duties to United States Magistrates, Appendix C of the Local Court Rules of the United States District Court for the Western District of Texas, **IT IS ORDERED** that, for cases assigned to Judge Pitman, the following matters shall be **REFERRED** to a United States Magistrate Judge for the Austin Division, allocated pursuant to the Clerk of the Court's standard procedure, for the types of actions listed below:

1. All cases brought pursuant to 28 U.S.C. §§ 2241, 2254 (excluding cases in which a sentence of death was imposed), and 2255 (excluding cases in which a sentence of death was imposed), cases brought by federal prisoners and detainees challenging conditions of confinement, cases brought by prisoners pursuant to 42 U.S.C. § 1983, and cases seeking judicial review of social security decisions shall be assigned to a United States Magistrate Judge for the Austin Division for disposition of all non-dispositive pretrial matters as provided in 28 U.S.C. § 636(b)(1)(A), and for findings and recommendations on all case-dispositive motions as provided in 28 U.S.C. § 636(b)(1)(B).
2. Any case in which application to proceed in forma pauperis has been made, other than a case described in paragraph (1) above, shall be referred to a United States Magistrate Judge for the Austin Division for disposition of the application to proceed in forma pauperis, disposition of any motion for appointment of counsel, and for a prompt recommendation as to whether the case should be dismissed as frivolous pursuant to 28 U.S.C. § 1915(e). Upon completion of the above tasks, the Magistrate Judge shall return the case to the district court for further proceedings.

Additionally, for cases assigned to Judge Pitman, **IT IS ORDERED** that holding the initial pretrial conference, and any subsequent conferences as necessary, in a civil or miscellaneous matter



is **REFERRED** to the United States Magistrate Judge assigned to the case, to United States Magistrate Judge Derek Gilliland for Waco patent cases assigned to Judge Pitman, or as otherwise directed by the undersigned. To that end, a United States Magistrate Judge may schedule initial pretrial conferences, enter orders regarding proposed scheduling orders, and enter other nondispositive or case management orders to effectuate initial pretrial conferences in civil cases and miscellaneous matters. The referral ends after the scheduling order has been entered.

This Order supersedes all prior Orders of this Court regarding the above-referenced matters for the Austin Division.

**SIGNED** on November 24, 2025.



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ROBERT PITMAN  
UNITED STATES DISTRICT JUDGE